

HOW COMMUNITIES CAN STOP DESTRUCTIVE DEVELOPMENT PROJECTS IN PORTUGAL

Complete Community Opposition How-To

This guide uses the Portuguese terms and bodies you'll actually run into — the AIA and its DIA, APA, the acção popular, the tribunal administrativo, the PDM, the Provedor de Justiça — and explains each in plain words the first time. It describes the mainland framework; the Azores and Madeira have their own environmental administration, and the 308 municipalities each have their competences — check locally.

INTRODUCTION & FRAMEWORK

For decades, oil companies eyed Portugal's coast — and by 2015 the government had handed out around fifteen concessions to drill for oil and gas, onshore in the Alentejo and offshore along the Algarve. The most notorious was the **ENI/Galp consortium's plan to drill off Aljezur**, on the wild Vicentine coast. But the people of the Algarve and Alentejo — surfers and fishers, farmers and hoteliers, whole municipalities, and campaigners in groups like the **Plataforma Algarve Livre de Petróleo (PALP)** — refused. They marched in their thousands, filled public consultations, and, decisively, went to court: **PALP won a precautionary measure — a protective order — against the Aljezur drilling**. The government fought it; but after the court ruling, in **October 2018 the ENI/Galp consortium renounced the concession**. One by one, every other company gave up too, and by around 2020 **oil-and-gas exploration in Portugal ended for good — no well was ever drilled**. Coastal communities had closed down an entire fossil-fuel frontier.

The Algarve and Alentejo communities — surfers and fishers, whole municipalities, and PALP (Plataforma Algarve Livre de Petróleo) — that closed Portugal's fossil-fuel frontier drew on an unusually strong hand. The environmental-assessment regime, **Avaliação de Impacte Ambiental (AIA)**, ends in a formal **Declaração de Impacte Ambiental (DIA)** — and an **unfavourable DIA genuinely blocks a project**. Portugal also has one of the **most generous standing rules in Europe**: the **acção popular** (Article 52 of the Constitution and Law 83/95) lets **any citizen or association sue to protect the environment**, with no need to prove personal injury — the very lever that stopped the Aljezur drilling. And as an EU member, Portugal's assessments must satisfy **EU law**, a backstop with teeth. But these tools have real limits, and this guide states them plainly. The system still leans toward approval — the assessing agency and the government want investment; public participation, while guaranteed, is often short and late; and the administrative courts, though open, are **slow and can be costly**, so a project may be built before a case is decided. Newer fights — over open-pit lithium mining in **Barroso**, dams, industrial livestock, coastal megaprojects — show the pressure is constant. So most wins are not a whole-industry defeat but an **unfavourable or heavily-conditioned DIA, an annulment, delay, or a redesign** — each a real result.

The Whole Strategy in One Idea

A big project looks unstoppable, but it's a chain of approvals, and a chain breaks at its weakest link. A Portuguese project needs a favourable **DIA** (an unfavourable one blocks it); it needs its **municipal licence** and to fit the **PDM**; it can be challenged by **acção popular** in the administrative courts; and where it touches **Natura 2000** or breaches **EU law**, it runs into hard grounds. Every one of those is a link you can grab. **Find the one closest to your hand and pull.**

Be Honest About Which Fight You're In

Before you spend a year on this, work out your real situation:

- **If you can win an unfavourable DIA, that blocks the project** — the assessment is the central gate.
- **The acção popular is a genuinely powerful lever** — anyone can sue to protect the environment, and it stopped Aljezur.
- **If it touches Natura 2000 or breaches EU law, those are hard grounds** — the European Commission can act.
- **But the courts are slow and can be costly** — a project may be built before a case is decided, so move early and pair law with the DIA, the municipality, and the public.

Read the whole guide once before you move. Two habits run through it: **treat access to justice as a right, not a favour** — the acção popular, participation, and environmental information are anchored in the Constitution, EU law, and Aarhus — and **run every front at once**: the documents, the participation, the DIA, the courts, the municipality, the press. That combination is how Aljezur was won.

HOW THE SYSTEM WORKS

To break the chain you have to see it — who decides, how a project moves, and who's watching.

Who Actually Decides

The central gate is the **AIA**, run by the environment agency **APA** (or a regional authority), ending in the **DIA** — favourable, conditionally favourable, or **unfavourable** (which blocks the project). The **municipality (câmara and assembleia municipal)** controls local planning through the **PDM (Plano Diretor Municipal)** and issues the licence a project needs. The relevant **ministry** sets policy and, for strategic projects, holds wide discretion (it can, exceptionally, authorise despite an unfavourable DIA — politically costly and legally fraught). And above all sits **EU law**. Know which decision you can reach, and aim there.

How a Project Moves — and Where You Jump In

The AIA and public consultation. The developer's environmental study goes through the AIA with a **public consultation**. *Your opening* — and it arms every later step: file substantive objections now, aiming to secure an **unfavourable DIA**.

The DIA. APA issues the DIA. *Your opening*: if favourable or conditional, challenge it by acção popular; an unfavourable one blocks the project.

The municipal licence and the PDM. *Your opening*: a project inconsistent with the PDM, or refused its municipal licence, can be stopped locally even where the DIA is favourable.

Construction. *Your opening*: breaches, EU-law complaints, and the courts.

Follow the Money and the Permissions

Dig up three things. **Who's behind it and who owns them** — a foreign parent is sensitive to reputation (the oil consortiums walked when the fight got costly). **What it still needs** — the DIA not favourable, the municipal licence not granted, financing not closed: whatever's missing is the soft spot. **Who's paying** — banks, investors, and any EU funds, which carry environmental conditions.

Who's Supposed to Be Watching

Each is an ally or an arena. **APA** runs the AIA and issues the DIA. The **municipality** controls the PDM and the licence. The **administrative courts** hear the acção popular. The **Provedor de Justiça** (Ombudsman) takes complaints. The **European Commission** enforces EU environmental law, and the **Court of Justice** can rule Portugal in breach. And Portugal's **strong environmental movement, its coastal communities, and a free press** are the forces that reach furthest — the combination that ended offshore oil.

QUICK REFERENCE: SUCCESS RATES

Size up the odds honestly. These are rough patterns, not promises. What most moves them: whether you can win an unfavourable DIA, whether Natura 2000 or EU law is engaged, and how strong the public and municipal opposition is.

What you do	Roughly works	How long	Cost	What "works" means
Just gather documents	5–10%	weeks	low	The base for everything else
Objections in the AIA consultation	20–40%	during AIA	low	On record; conditions or an unfavourable DIA
Winning an unfavourable/conditional DIA	30–55%	during AIA	low	Project blocked or heavily conditioned
Acção popular (administrative courts)	30–55%	1–4 yr	low–mod	DIA or licence annulled; a protective order
Natura 2000 / EU-law ground	35–60%	1–5 yr	low–mod	Assessment struck; project blocked
Municipal / PDM leverage	20–45%	months–yr	low	Project stopped at local level
Complaint to the European Commission	25–50%	1–5 yr	low	Portugal found in breach
Everything together (Natura 2000/DIA, public roused)	45–65%	1–4 yr	low–mod	Blocked, annulled, conditioned, abandoned
Everything together (strategic project, clean process)	20–45%	1–4 yr	low–mod	Delayed, conditioned, redesigned

The levers that move the needle most are the **unfavourable DIA**, the **acção popular** (which stopped Aljezur), and the **Natura 2000/EU-law grounds**, backed by the municipality and the public. Aljezur shows the ceiling (a whole industry defeated, partly by a single protective order). Most fights are smaller — an unfavourable DIA, an annulment, delay — and each is real.

On cost: objecting and organising are cheap, and a complaint to the European Commission is free and open to anyone; the acção popular gives standing to any citizen or association. But the administrative courts can be slow and costly, so move early — and remember a protective order (as at Aljezur) can hold a project while the case runs.

STEP 1: TARGET IDENTIFICATION

Being against "the project" is weak. Being specific — this DIA, this Natura 2000 line, this PDM conflict — is strong. Answer five questions in writing.

1. What is it, and who's behind it? Name the project, the company, its foreign parent, its financiers (including EU funds).

2. Where is it, and what does it touch? Get the footprint and lay it over **Natura 2000 sites** (like the Southwest Alentejo and Vicentine Coast Natural Park), the coast, water, protected nature, communities. **A Natura 2000 site or coastal protection is your sharpest lever**, so this map is your most important document — Aljezur turned on a wild protected coast.

3. What stage is it at, and what's the next deadline? Is the AIA consultation open? Has the DIA issued? Is the municipal licence pending? These openings are time-bound — and the courts are slow, so move early.

4. What does it still need that it lacks? A favourable DIA, a municipal licence, financing. The missing piece is the soft spot.

5. Who else is affected, and who already opposes it? Neighbours, the municipality, national environmental groups, the tourism sector. Aljezur united communities, municipalities, and campaigners.

What this looks like in real life. A community learns a mine or coastal project is planned that threatens a Natura 2000 area, its study thin. The five questions yield: a company (and maybe EU funds) behind it; a site on protected coast or nature (the sharp lever); an AIA in consultation; a project still needing its DIA and municipal licence; and a coalition of communities, the municipality, and national groups. That's the Aljezur pattern — fight for an unfavourable DIA, ready the acção popular, and win over the municipality.

STEP 2: DOCUMENTATION

The difference between a community that can fight and one that can't is proof. Build it in three layers.

Layer one: the paper trail. Get the documents the decision rests on — the environmental study, the DIA and its conditions, the Natura 2000 assessment, the municipal licence and the PDM. Your **right to environmental information** (Constitution, EU law, Aarhus) forces out what isn't public. Then read the study hard for flaws — an understated impact, an ignored alternative, a Natura 2000 site brushed over, a coastal value minimised.

Layer two: the ground truth. Dated, located photographs and video of the site, the coast, the nature — baseline images before any damage most of all — and the testimony of affected residents.

Layer three: the map of Natura 2000 and the coast. Lay the project over every Natura 2000 site, protected coast, and water body it touches, so each lever is visible. Walking into the AIA, the administrative court, or the European Commission with the study, the DIA, and that map is what makes them act.

WHAT TO GATHER, AND WHERE TO FIND IT

- **The environmental study, the DIA and conditions, the Natura 2000 assessment, the municipal licence and the PDM** — from APA and the municipality; force out the rest under the environmental-information rules (8A).
- **The PDM and land records** — from the câmara municipal.
- **Ownership and financing** — company records, the parent's filings, EU-fund documents.
- **The Natura 2000-and-coast map** — protected sites, coast, and water, laid over the project.

- **Dated site evidence and named testimony** — photographs marked with date and place, and residents' statements.

STEP 3: BUILDING LOCAL OPPOSITION

Documents give you a case; people give you power — and Aljezur was won by a broad coalition of coastal communities, municipalities, and campaigners. Build yours in four moves.

Start with a tight core. The neighbours most affected, the people who know the coast and nature, a few tireless organisers, and respected local figures.

Form an association and reach the national movement. A named association (the *acção popular* is open to associations), linked to national environmental groups and platforms like the ones that fought the oil concessions, brings standing, expertise, and reach. Hold meetings where people see the evidence — the map of the project over the protected coast.

Win over the municipality. The *câmara* and *assembleia* control the PDM and the licence, and are where local politics is decided — the coastal municipalities were central to the oil fight. Make them allies.

Bring in the lawyers and experts — early. Public-interest lawyers who run *acção popular* cases (and precautionary measures, as at Aljezur), and scientists who can dismantle a weak study. Move early, because the courts are slow.

Build to last. Portuguese fights can run for years. Build clear roles, a shared archive, a way to decide together, and a plan for the toll — and remember a protective order can hold the line while you fight.

STEP 4: LEGAL CHALLENGES, THE DIA & THE ACÇÃO POPULAR

Law is one of Portugal's sharpest levers, because the *acção popular* is so open and the DIA is a real gate.

Object First — Aim for an Unfavourable DIA

Everything downstream is stronger if you filed substantive objections in the AIA consultation, aiming to secure an **unfavourable DIA**, which blocks the project outright. The court reviews a favourable DIA on that record.

The Acção Popular and a Protective Order

The core route is the **acção popular** — Article 52 of the Constitution and Law 83/95 — which lets **any citizen or association sue to protect the environment**, no personal injury needed: one of Europe's most generous standing rules. Bring it in the **administrative courts (tribunal administrativo)** to annul a favourable DIA or a licence. And — the Aljezur lesson — seek a **precautionary measure (a protective order)** to halt the project while the case runs, since the courts are slow; that order was decisive against the offshore drilling.

EU Law, Natura 2000, and the European Commission

Run a parallel front on **EU law**. The AIA transposes the **EIA Directive** and the **Habitats and Birds Directives**, so an assessment breaching EU standards is vulnerable in the courts — and you can **complain to the European Commission** (free, open to anyone), which has taken Portugal to the Court of Justice over its EIA rules. A **Natura 2000** site is your hardest ground.

The Honest Limits

Straight talk: the DIA, the acção popular, and EU law are powerful, but the system leans to approval, participation is often short and late, the courts are slow and can be costly, and a ministry can — exceptionally — authorise despite an unfavourable DIA. So use the strong tools — the objections, the unfavourable DIA, the acção popular and its protective orders, EU law, the Commission — but move early, pair them with the municipality and the public, and count an unfavourable or conditioned DIA, an annulment, delay, and a redesign as wins alongside a clean stop.

TURNING YOUR EVIDENCE INTO ARGUMENTS

A stack of documents wins nothing until you aim it.

A document becomes a case for an unfavourable DIA. Not "the project is bad" but *"the study ignored the impact on this Natura 2000 site — the DIA should be unfavourable."*

Standing becomes a key. *"Under the acção popular, any citizen can sue to protect this coast — no personal injury needed."*

EU law becomes a barrier. *"This breaches the Habitats and EIA Directives — vulnerable in court and before the European Commission."*

The harm becomes a public story. *"The coast, the water, the nature our families have always known — for a project we never agreed to."*

Match it to the venue: the objections to APA in the AIA; the acção popular and a protective order to the administrative court; the breach to the European Commission; the PDM to the municipality; the human story to the press.

STEP 5: MEDIA STRATEGY

In Portugal, publicity and mobilisation are inseparable — the anti-oil movement became a national cause carried by huge coastal protests. A free press and civic networks make the media front central.

Lead with people and place, not procedure. Not "the DIA process was deficient" but "the coast, the water, the nature our families have always known — for a project we never agreed to." Use your strongest material: dated photographs, the map of the project over the protected coast, and named residents.

Work several audiences at once — including Europe. Local and national press and social media build the mass; national groups amplify; and European media and institutions reach the Commission and the foreign parent's investors. Make it easy: captioned photos, accurate summaries, a map, strong voices.

Two hard rules. Accuracy above all — one exaggeration can discredit everything. And frame your rights as rights — access to justice here is not a favour.

EMAILS & LETTERS

Make them your own; keep them short, exact and calm; keep a copy of everything.

8A — Environmental-information request (to APA / the municipality).

Subject: Pedido de informação ambiental — [projeto].

"Under the right to environmental information, we, residents of [place], request the environmental study, the DIA and its conditions, the Natura 2000 assessment, and the PDM and licence for [project] at [location]. [Contact.]"

8B — Objection in the AIA consultation.

Subject: Participação pública — oposição a [projeto].

"We, residents of [place], object to [project]: [it damages this Natura 2000 site / protected coast; the study ignored alternatives]. We ask that the DIA be unfavourable. [Attach evidence.]"

8C — To a national group / lawyer (acção popular).

Subject: Apoio e acção popular — [projeto].

"Our community faces [project] on [a Natura 2000 site / protected coast]. We've gathered [the study, the DIA, photographs] and believe it breaches [the Habitats / EIA Directive]. We ask for your support and, if warranted, an acção popular with a protective order, as partners. [Contact and evidence summary.]"

8D — Instructing a lawyer (annulment + protective order).

Subject: Acção popular e providência cautelar — [projeto].

"We instruct you to bring an acção popular to annul the DIA/licence for [project], issued on [date], in the administrative court, and to seek a precautionary measure to halt it, on the grounds that [it breaches the Habitats/EIA Directive / the study was defective]. [Attach the DIA, the study and our evidence.]"

8E — Complaint to the European Commission.

Subject: Possible breach of EU environmental law — [project], Portugal.

"We report a possible breach of EU environmental law (the Habitats/Birds/EIA Directives) by [project] at [location], which damages the [named] Natura 2000 site without proper assessment. [Attach evidence.]"

8F — To the municipality (PDM / licence).

Subject: Oposição no âmbito do PDM e do licenciamento — [projeto].

"We, residents of [place], ask the câmara not to license [project], which conflicts with the PDM and threatens [our coast / nature / community]. [Attach evidence.]"

8G — Letter to the press.

Subject: [Community] moves to protect [coast / nature] from [project].

"For generations the people of [place] have lived beside [the coast / the nature] at [location] — protected across Europe. Now [project] threatens it. We can provide photographs, documents, a map and interviews. [Contact.]"

8H — Rallying the community.

Subject: We can stop this — here's how.

"[Project] threatens [our coast / nature]. On the Algarve coast, communities, municipalities, and campaigners drove out an entire oil industry — with the acção popular, the courts, and the streets. With an unfavourable DIA, the acção popular, EU law, and our município behind us, we have a real chance. Please join us. [Contact.]"

IF YOU HAVE LITTLE TIME OR FEW RESOURCES: THE RAPID-FIRE VERSION

If you must move fast and lean, do these six things, in order:

1. **Nail down the project and its footprint, and look for a Natura 2000 or coastal-protection lever.** That's your sharpest.
2. **File substantive objections in the AIA consultation, aiming for an unfavourable DIA (8B).**
3. **Request the study and DIA (8A), and read them for flaws.**
4. **Photograph everything, with dates and places.** Baseline images before any damage matter most.
5. **Bring an acção popular with a protective order (8D) — and complain to the European Commission (8E).**
6. **Win over your município and go public (8F/8H).** Aljezur was won this way.

Even lean, those six use your rights, aim for the DIA, open the acção popular and the EU-law front, and start a coalition — move early, because the courts are slow.

WHEN THE SYSTEM IS TILTED

Portugal's tools are real, but the field can be tilted, and you must plan for it.

When the government backs a strategic project. A ministry can, exceptionally, authorise despite an unfavourable DIA. Use the acção popular, EU law, and the Commission, keep the movement alive, and make the override a public and European cost.

When participation is short and late. Portugal's consultation can be rushed. Treat participation as a right (Aarhus), object substantively, and use it to build the court record.

When the courts are slow. A project may be built before a case is decided. Move early, and seek a **protective order** — the Aljezur lever that held the line.

What still works, and it's a lot. An unfavourable DIA that blocks a project; an acção popular open to any citizen; EU law and a Commission that can force a stop; a municipality that can refuse a licence; and a public that has defeated a whole industry.

WHEN IT'S ACTUAL CORRUPTION — AND WHO'S CAPTURED

Portugal is an EU democracy, but the closeness of developers, agencies, and government can bend a decision, and where it does, you expose it.

How to spot it. A DIA against the evidence; a study written for the proponent; a consultation engineered to exclude; a ministry overriding an unfavourable DIA; benefits to the connected while the community carries the harm.

Who's supposed to guard against it. The **Tribunal de Contas** examines public money. The **Provedor de Justiça** takes complaints. The **Ministério Público** and the anti-corruption bodies handle graft. The **administrative courts** can annul a tainted DIA, and the **European Commission** can act where EU funds are misused. And Portugal's **investigative press and environmental NGOs** have exposed captured projects.

How to fight it safely. Document precisely and factually — how the process was bent, who benefits, what the law required — and keep clear the line between what you can prove and what you suspect. Route serious evidence to the Provedor, the Tribunal de Contas, and trusted journalists rather than making accusations you can't back. Pair the exposure with the *acção popular* and the public campaign.

INTEGRATION & TIMELINE

Don't run these steps one after another — run them together, and early. The documents build your proof; pinning down the Natura 2000 and coastal levers aims it; organising builds the muscle; the DIA fight, the *acção popular*, and the Commission press the case; the municipality and the media raise the cost. Together they multiply. One at a time — with slow courts — they stall.

Early on (weeks 1–8): nail down the project, its footprint, and any Natura 2000 or coast; object in the AIA aiming for an unfavourable DIA; request the records; photograph the baseline; form your association and get a lawyer; win over the município.

In the thick of it (months–years): bring the *acção popular* and seek a protective order; complain to the European Commission; press the PDM and licence at the municipality; build the movement and open the media front.

The long haul (years): carry the case through the administrative courts and, via the Commission, the CJEU; keep the movement alive; hold the line for an unfavourable or conditioned DIA, an annulment, delay, or an outright stop.

FINAL ASSESSMENT

Stopping a destructive project in Portugal can be done — coastal communities, municipalities, and campaigners drove an entire oil-and-gas industry out of the country, with a single protective order proving decisive at Aljezur. Hold both truths. Portugal's tools are real and, in one respect, unusually strong: an AIA that ends in a DIA an unfavourable version of which blocks a project; an *acção popular* open to any citizen or association, one of Europe's most generous standing rules; EU law and a European Commission that can force a stop; and municipalities that can refuse a licence. And the constraints are real: a system that leans to approval, short and late participation, slow and costly courts, and a ministry that can — exceptionally — override an unfavourable DIA.

Here's the discipline that wins. Find the Natura 2000 site or the coastal protection — your sharpest lever — and the flaw in the study, and pry loose the record. Object in the AIA, aiming for an unfavourable DIA. Bring an *acção popular* and seek a protective order to hold the line while the courts are slow, and open a second front by complaining to the European Commission. Win over your município on the PDM and the licence, and carry the story to the public. Count an unfavourable or conditioned DIA, an annulment, delay, and a redesign as wins alongside a clean stop. That's what the Algarve did — the DIA, the *acção popular*, the courts, and the coast together. So can you.